

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #16	CCRB Case #: 202303761	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/26/2023 11:36 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/26/2024	Precinct: 42		
Date/Time CV Reported Mon, 05/01/2023 11:32 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 05/01/2023 11:32 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO William Schumacher	04618	949640	P S B
2. LT Nikolaos Stefopoulos	00000	944294	PSB CRT
3. PO Racine Otway	17426	970052	PSB CRT
4. PO Brian Estevez	26725	965072	PSB CRT
5. DTS Khaleef Allicott	00921	949989	PSB CRT
6. DTS Ryan Coffaro	27973	969020	PSB CRT
7. DTS Rashard Jones	18707	961842	PSB CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Liosmely Holguin	13031	966628	PSB CRT
2. DTS Charlie Viera	00618	939655	HWY 3
3. PO Kevin Ferguson	21469	973388	PSB CRT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DTS Ryan Coffaro	Abuse: Detective Ryan Coffaro entered § 87(2)(b) in the Bronx.	A . Substantiated
B . PO Brian Estevez	Abuse: Police Officer Brian Estevez entered § 87(2)(b) in the Bronx.	B . Substantiated
C . DTS Ryan Coffaro	Abuse: Police Officer Ryan Coffaro frisked an individual.	C . Substantiated
D . PO Brian Estevez	Abuse: Police Officer Brian Estevez frisked an individual.	D . Substantiated
E . DTS Khaleef Allicott	Abuse: Detective Khaleef Allicott searched an individual.	E . Substantiated
F . DTS Rashard Jones	Abuse: Police Officer Rashard Jones frisked an individual.	F . Substantiated
G . PO William Schumacher	Discourtesy: Police Officer William Schumacher spoke discourteously to § 87(2)(b)	G . Unable to Determine
H . PO William Schumacher	Abuse: Police Officer William Schumacher threatened to arrest § 87(2)(b)	H . Substantiated
I . PO Racine Otway	Abuse: Police Officer Racine Otway threatened to arrest § 87(2)(b)	I . Unable to Determine
J . LT Nikolaos Stefopoulos	Abuse: Lieutenant Nikolaos Stefopoulos failed to activate his body-worn camera.	J . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
K . DTS Ryan Coffaro	Abuse: Detective Ryan Coffaro failed to activate his body-worn camera.	K . Substantiated
L . PO Brian Estevez	Abuse: Police Officer Brian Estevez failed to activate his body-worn camera.	L . Substantiated
M . DTS Rashard Jones	Abuse: Detective Rashard Jones failed to activate his body-worn camera.	M . Substantiated
N . PO Racine Otway	Abuse: Police Officer Racine Otway failed to activate her body-worn camera.	N . Substantiated
O . DTS Khaleef Allicott	Abuse: Detective Khaleef Allicott failed to activate his body-worn camera.	O . Substantiated
P . PO William Schumacher	Abuse: Police Officer William Schumacher failed to activate his body-worn camera.	P . Unable to Determine

Case Summary

On May 1, 2023, § 87(2)(b) filed this complaint via the CCRB Call Processing System.

On April 26, 2023, at 11:36 p.m., § 87(2)(b) was working as a security guard at the gate of the § 87(2)(b) located at § 87(2)(b) in the Bronx. PO Ryan Coffaro (he has since been promoted to Detective), PO Brian Estevez, Det. Khaleef Allicott, PO Rashard Jones (he has since been promoted to Detective), PO William Schumacher, PO Racine Otway, Det. Charlie Viera, and Lieutenant Nikolaos Stefopoulos, all of the Patrol Service Bureau, arrived outside the location. Immediately after § 87(2)(b) buzzed in a male resident, PO Coffaro and PO Estevez ran behind him and entered the shelter courtyard (**Allegations A and B: Abuse of Authority, Substantiated**). Inside the courtyard, PO Coffaro and PO Estevez frisked the male (**Allegation C: Abuse of Authority, Substantiated**) (**Allegation D: Abuse of Authority, Substantiated**). Det. Allicott searched a bag that the individual carried (**Allegation E: Abuse of Authority, Substantiated**). PO Jones frisked another male outside the shelter who was driving a moped (**Allegation F: Abuse of Authority, Substantiated**). PO Schumacher allegedly said to § 87(2)(b) “Open up the fucking gate” (**Allegation G: Discourtesy, Unable to Determine**). PO Schumacher told § 87(2)(b) that she could be arrested for interfering with an investigation (**Allegation H: Abuse of Authority, Substantiated**). PO Otway allegedly said to § 87(2)(b) colleague, “You need to tell your coworker the next time she intervenes, she’s going to get locked up” (**Allegation I: Abuse of Authority, Unable to Determine**). Lieutenant Stefopoulos, PO Coffaro, PO Estevez, PO Jones, PO Otway, and PO Allicott did not activate their BWCs at the beginning of this incident (**Allegations J-O, Abuse of Authority, Substantiated**). PO Schumacher did not activate his BWC during this incident (**Allegation P: Abuse of Authority, Unable to Determine**).

The CCRB obtained nine BWC videos related to this incident (BR01). The CCRB is in possession of no additional videos.

A summons was issued to the moped driver as a result of this incident (BR43).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ryan Coffaro entered § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Brian Estevez entered § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Ryan Coffaro frisked an individual.

Allegation (D) Abuse of Authority: Police Officer Brian Estevez frisked an individual.

Allegation (E) Abuse of Authority: Detective Khaleef Allicott searched an individual.

§ 87(2)(b) stated that she works as a security guard at § 87(2)(b) in the Bronx, which is the § 87(2)(b) a Department of Homeless Services (DHS) safe haven family shelter (BR04). The front entrance is a large metal gate, which leads into a courtyard, where there are entrances to four buildings. The security booth where § 87(2)(b) works is next to the large metal gate. On April 26, 2023, she buzzed a male resident in. Immediately after, Det. Coffaro and PO Estevez ran behind him, through the metal gate leading into the courtyard.

The investigation was unable to identify the male victim.

In BWC footage recorded by PO Estevez, the audio begins at 1:00 (BR05). At 00:00 he is captured running in a courtyard towards a male wearing a red hoodie. PO Coffaro is standing with the male, holding him by the upper arms and frisking a beige bag he is carrying around his shoulder. PO Coffaro is the only officer inside the courtyard. This footage does not show how PO Estevez gained

access into the courtyard. At 00:10, PO Allicott takes the bag off the male civilian and searches it by opening a zipper. Simultaneously, PO Coffaro frisks the male individual by patting down a pocket on the front of his hoodie. PO Estevez lifts up the male's hoodie while PO Coffaro appears to frisk other pockets. The civilian is holding his hands up throughout the frisk. At 00:15, PO Coffaro stops frisking the individual and stands in the same area speaking to him inaudibly.

PO Coffaro's BWC (BR06) depicts an alternate angle of the events captured in PO Estevez' BWC. It does not show how PO Coffaro and PO Estevez gained access to the courtyard. It depicts PO Coffaro frisking the front and back of the male's hoodie and his waistband.

From 00:03 to 00:05 of Det. Allicott's BWC, PO Coffaro is captured frisking a beige bag that the male in the red hoodie is carrying (BR07). PO Coffaro's hand covers the front of the bag and the BWC does not capture any visible shapes or bulges. At 00:08, Det. Allicott removes the bag from around the passenger's shoulder, opens it, and looks inside. At the same time, PO Estevez lifts up the left side of the male's hoodie, revealing his waistband area. At 00:20, Det. Allicott returns the bag to the male. This footage does not clearly depict the bag before Det. Coffaro frisks it and Det. Allicott searches inside it.

PO Coffaro generated a Stop Report for this incident, in which he noted that he observed three individuals on a moped driving on the sidewalk with no helmets (BR48). He also wrote, "A male Black, wearing a red hoodie, [...] fled on foot after police contact. While fleeing the male did lean forward and hold the front of his waistband area possibly concealing a weapon for the entirety of the sprint. Upon stop a waistband frisk was conducted with negative results."

With the exception of PO Schumacher saying he did not recall, and PO Otway who arrived after the officers stopped the moped, all of the other officers identified the male in the red hoodie as a passenger on the moped (BR08-11). All of the officers stated that they ran after the male in the red hoodie after the moped stopped in front of § 87(2)(b) while PO Jones approached the driver (BR08-11). Aside from stating that the male opened the gate, none of the officers interviewed recalled how the male opened the locked gate into the courtyard or the specifics of how the initial officers, PO Coffaro and PO Estevez, gained entry.

PO Coffaro stated that he was conducting routine patrol with his partner, Det. Allicott, when he observed three males riding a moped without a license plate or helmets (BR08). He did not recall if he activated his vehicle's lights and sirens to initiate a stop. Other than the VTL violations, he did not observe the three individuals commit any additional infractions. At § 87(2)(b) the male in the red hoodie pushed the gate open, entered the courtyard, and slammed the gate, in what PO Coffaro believed was an attempt to evade the officers. PO Coffaro prevented the gate from closing with his hand. As PO Coffaro ran behind him, he saw the male grabbing and manipulating his waistband. Based on these observations, PO Coffaro was concerned that the male had a weapon, so he stopped and frisked him. PO Coffaro did not recall where he frisked, aside from what is captured on his BWC. PO Coffaro did not recall all the observations he made which led him to believe the moped passenger (the male in the red hoodie) was armed. He did not recall seeing a bulge. He clarified to CCRB that he generated a Stop Report relating to this incident, in which he noted such details. At the time of his interview, PO Coffaro did not have access to the Stop Report he generated. PO Coffaro said that other than the VTL violations, there were no additional reasons why he chased the male.

PO Estevez stated that he did not recall if he was addressing any complaint patterns during this incident (BR09). While on patrol, PO Estevez observed three individuals on a moped, riding recklessly by driving on the sidewalk and without helmets. He did not observe the riders commit

any additional infractions or any crimes. PO Estevez did not recall if the officers activated their lights and sirens. PO Estevez initially stated that he did not frisk this male. After reviewing his BWC from 00:00 to 00:16, he maintained that he did not frisk him, because he did not believe he lifted the male's hoodie. PO Estevez clarified to CCRB that the sole reason he ran after the riders into the courtyard was because he was following PO Coffaro.

Lieutenant Stefopoulos stated that they were targeting unregistered mopeds and moped thefts in the Bronx (BR10). Lieutenant Stefopoulos stated that he and his team observed two mopeds, one of which carried three individuals. The moped with three individuals rode past five red lights, rode on sidewalks, and none of the passengers wore helmets. Lieutenant Stefopoulos did not observe additional violations. Lieutenant Stefopoulos' team did not activate their lights and sirens because they did not want to initiate a vehicle chase. Lieutenant Stefopoulos added that the male's bag resembled bags commonly used to carry firearms, and they were in an area where robberies involving firearms and scooters were common, which gave him an inclination that this male could be armed. Throughout his career, Lieutenant Stefopoulos has recovered "dozens" of firearms from similar bags.

Det. Allicott said he was addressing a robbery pattern near the area where this incident occurred (BR11). The vehicle ahead of him activated its lights, which brought Det. Allicott's attention to a moped, with two occupants, driving recklessly by running red lights, weaving in and out of traffic, and not wearing any helmets. Det. Allicott stated that once the male in the red hoodie ran into § 87(2)(b) it was considered a "hot pursuit." Det. Allicott did not observe the moped driver or passenger commit any violations other than the VTLs he observed. Once he caught up with PO Coffaro and PO Estevez inside the courtyard, he searched the male's bag because he ran from the officers and Det. Allicott noticed a big bulge that appeared rectangular and heavy. Det. Allicott believed that the bulge could have been a weapon. Det. Allicott did not find any weapons in the passenger's bag.

PO Jones stated that he observed the two males on the moped running through multiple red lights, without wearing helmets, and driving on the sidewalk, near East Tremont and Third Avenue (BR24). He added that when he made his memo book entry regarding this incident (BR02), he noted the location as "East Fremont Avenue" instead of "East Tremont Avenue." PO Jones said this was a spelling error.

PO Otway noted in her memo book that PO Jones issued a summons to an individual at 11:36 p.m. PO Otway attached a photo of the summons which lists the offense as "reckless driving" (BR43; pages 8 and 13).

A request for the summons issued by PO Jones was returned with negative results (BR03).

The Office of Legal Affairs at the Department of Social Services, (DSS) which oversees DHS, provided the investigation with a memo issued on March 3, 2021, by the DHS Commissioner to DHS staff and providers. The memo states that "except in cases where the NYPD is responding to a 911 call originating from within a facility or in hot pursuit of a suspected criminal who has just entered the facility, the NYPD may not enter any DHS facilities, including those operated by DHS providers/vendors, without a judicial warrant or, for Single Adult Shelters and Safe Havens, an Investigation Card issued by the NYPD" (BR44).

In People v. Theodore, 114 A.D. 3d 814, the Court established that an individual has a reasonable expectation of privacy in areas outside the home which are shielded from view by those on the street and within artificial barriers enclosing the home (BR45).

In People v. Faulkner, 185 A.D.2d 764, the Court found that officers are justified in making a warrantless entry when they are in hot pursuit of a perpetrator, and they have probable cause to believe the perpetrator has committed a crime (BR12).

NY CLS Veh & Tr § 1282 prohibits the use of an electric scooter to carry more than one person at one time (BR13). Any person violating this provision shall be punished by a civil fine.

NY CLS Veh & Tr § 402 prohibits the operation of motor vehicles without plates displaying a distinctive number assigned to it by the commissioner, which corresponds with the number on the vehicle's certificate of registration (BR14).

NY CLS Veh & Tr § 1286(1) dictates that no person sixteen or seventeen years of age shall ride upon, propel or otherwise operate an electric scooter unless such person is wearing a helmet. Any person violating this provision shall be punished by a civil fine (BR15).

NY CLS Veh & Tr § 1212 prohibits reckless driving and defines it as "driving or using any motor vehicle, motorcycle or any other vehicle [...] in a manner which unreasonably interferes with the free and proper use of the public highway, or unreasonably endangers users of the public highway" (BR16). Any person violating this provision shall be guilty of a misdemeanor.

Given that PO Coffaro and PO Estevez were the first officers to enter the courtyard, the entries were pleaded solely against them.

None of the officers observed the moped driver or passenger commit any violations or infractions other than the VTL violations listed above. § 87(2)(g)

§ 87(2)(g) it is undisputed that the male in the red hoodie was a passenger. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be **Substantiated**.

In People v. DeBour, 40 N.Y.2d 210, the Court found that when officer has a reasonable suspicion that a person has committed, is committing or is about to commit a felony or misdemeanor, in addition to being permitted to stop and detain said person, the officer is also permitted to frisk the detainee if he reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed. It also notes that "a pocket bulge" can be caused by "any number of innocuous objects," while a waistband bulge is a "telltale of a weapon" (BR20).

PO Coffaro did not observe the male passenger in the red hoodie commit any offenses aside from the VTL violations. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Although PO Estevez denied frisking the male in the red hoodie, given that the officers' BWCs show that PO Estevez, PO Coffaro, Det. Allicott, and Lieutenant Stefopoulos were the only officers present when the officer lifted the male's hoodie and given PO Estevez' position, the investigation determined by a preponderance that he lifted the male's hoodie, § 87(2)(g)

PO Estevez did not observe the male in the red hoodie or the driver of the moped commit any offenses aside from the VTL violations. § 87(2)(g)

it is recommended that **Allegation D** be **Substantiated**.

People v. DeBour, 40 N.Y.2d 210, states that officers may forcibly stop a person when they possess reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor. It also notes that "a pocket bulge," can be caused by "any number of innocuous objects," while a waistband bulge is a "telltale of a weapon" (BR20).

In People v. Gerard, 94 A.D.3d 592, the Court determined that an individual in a high-crime area, who has a weighted-down bulge in his pocket, changing course after noticing officers, blading his body as an officer approaches him, and attempting to block the officer's hand from touching the bulge, only provides officers with founded suspicion, but does not create the reasonable suspicion necessary to stop and frisk the individual (BR22).

The BWC footage obtained is insufficient to determine whether the passenger's bag had any rectangular hard bulges that may resemble a weapon. § 87(2)(g)

It is therefore recommended that **Allegation E** be **Substantiated**.

Allegation (F) Abuse of Authority: Police Officer Rashard Jones frisked an individual.

In BWC footage recorded by PO Jones, the audio begins at 1:00 (BR23). At 00:00, PO Jones frisks a Black male by grabbing the exterior of his right-side jacket pocket and lifting it up to expose his waistband. PO Jones then squeezes the same pocket four times, after which he squeezes and pats down the back of the driver's jacket. PO Jones then pats down the front and back pockets on the right side of the driver's pants.

PO Jones stated that he observed the two males on the moped running through multiple red lights, without wearing helmets, and driving on the sidewalk, near East Tremont and Third Avenue (BR24). He activated his vehicle's lights to initiate a vehicle stop, but the individuals did not stop, until they reached the front of § 87(2)(b) After the passenger fled, PO Jones went to obtain the driver's information. The driver put his hands up, which PO Jones interpreted to mean that "he did not have anything." PO Jones clarified to CCRB that he understood this through the driver's body language and the driver never said whether he could frisk or search him. PO Jones

explained that he frisked the individual because he lifted his hands up and because he had a bulge in all of the pockets that PO Jones frisked. PO Jones added that if the individual “told” him to go ahead, by lifting his arms up, he had to frisk him for his own safety because he fled from the police, in order to make sure he did not have any weapons. All the bulges looked hard and heavy, and PO Jones did not notice any additional details about them.

PO Otway said she did not recall which of the vehicles in the caravan initiated the moped’s stop (BR28). She believed that one of the vehicles in the caravan activated its lights and sirens, and her own vehicle had its lights activated.

Det. Allcott stated that the vehicle in front of his own activated its lights, which is what brought his attention to the moped (BR11). The moped did not stop for approximately three to four blocks.

PO Estevez did not recall if any of the vehicles in the caravan activated their lights or sirens prior to stopping the moped (BR09).

Lieutenant Stefopoulos stated that his team did not activate their lights and sirens, to avoid a vehicle chase. They followed the moped with three occupants toward § 87(2)(b) (BR 10).

People v. DeBour, 40 N.Y.2d 210, states that officers may forcibly stop a person when they possess reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor, and that officers may frisk a stopped individual if they reasonably believe they are in danger of physical injury due to the individual being armed. It also notes that “a pocket bulge” can be caused by “any number of innocuous objects,” while a waistband bulge is a “telltale of a weapon” (BR20).

In People v. Gonzalez, 39 N.Y.2d 122, the Court established that consent is valid when it is a free and unconstrained choice. Consent which is provided outside these parameters is considered involuntary (BR47).

As per People v. Gomez, 5 N.Y.3d 416, the standard for measuring the scope of a suspect’s consent is that of objective reasonableness (BR 49).

Due to the inconsistent MOS statements and absent additional video footage, the investigation was unable to determine whether the driver fled from the officers as they tried to stop the moped.

§ 87(2)(g)

it is therefore recommended that
Allegation F be Substantiated.

Allegation (G) Discourtesy: Police Officer William Schumacher spoke discourteously to

§ 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer William Schumacher threatened to arrest

§ 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Racine Otway threatened to arrest § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) said after PO Coffaro and PO Estevez ran through the gate, she told them they were not allowed inside and closed the gate (BR04). PO Schumacher went to the gate and asked her to open it. She told him, “No. This is a shelter. This is a safe haven, there are protocols.” § 87(2)(b) called another security guard and asked her to come out and stay with the officers while she called her supervisor. PO Schumacher said, “Open up the fucking gate.” He told her she could get arrested because she was interfering in an investigation. § 87(2)(b) subsequently went into the building to call her supervisor. Later, § 87(2)(b) heard PO Otway say to the supervisor, “You need to tell your coworker the next time she intervenes, she’s going to get locked up.” She then heard PO Schumacher say, “I will lock her up. If she intervenes you better talk to her, and let her know when we come, you let us in.”

In Det. Charlie Viera’s BWC, at 1:01, PO Schumacher is captured exiting the entry gate to the courtyard (BR26). A male voice is heard saying, “Get arrested for OGA.” § 87(2)(b) says, “Director says what are you all going in here for?” PO Schumacher says, “I don’t care what the director says. When the police tell you to do something you do it, end of story. End of story.” § 87(2)(b) who is out of frame is heard saying, “You hear what he said?” PO Schumacher says, “That’s how you get arrested. That’s how quick you get arrested. Trust me.”

PO Schumacher stated that he did not recall the details of this incident (BR27). He reviewed Det. Viera’s BWC from 1:00 to 1:15. He clarified to CCRB that in saying “That’s how you get arrested that how quick you get arrested,” he was explaining to § 87(2)(b) that refusing to allow a police officer into the courtyard to apprehend an individual during a police emergency could lead to an arrest. PO Schumacher denied saying to § 87(2)(b) “open the fucking gate.” He did not recall using any profanities while speaking to § 87(2)(b).

PO Otway said she did not remember seeing § 87(2)(b) try to stop any officers from entering the courtyard (BR28). She only recalled that § 87(2)(b) was on the phone. Nothing about § 87(2)(b) tone or demeanor stood out to PO Otway. She did not observe § 87(2)(b) commit any arrestable offenses and did not see § 87(2)(b) try to interfere with the officers chasing the moped passenger into the courtyard. PO Otway denied telling § 87(2)(b) supervisor that she could be arrested.

NY CLS Penal § 195.05 states that person is guilty of obstructing governmental administration when he “intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function” (BR29).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **Substantiated**.

None of the videos obtained by CCRB capture PO Schumacher say, “Open the fucking gate,” to

§ 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation H** be closed as **Unable to Determine**.

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Unable to Determine**.

Allegation (J) Abuse of Authority: Lieutenant Nikolaos Stefopoulos improperly used his body-worn camera.

Allegation (K) Abuse of Authority: Police Officer Ryan Coffaro improperly used his body-worn camera.

Allegation (L) Abuse of Authority: Police Officer Brian Estevez improperly used his body-worn camera.

Allegation (M) Abuse of Authority: Police Officer Rashard Jones improperly used his body-worn camera.

Allegation (N) Abuse of Authority: Police Officer Racine Otway improperly used her body-worn camera.

Allegation (O) Abuse of Authority: Detective Khaleef Allicott improperly used his body-worn camera.

Allegation (P) Abuse of Authority: Police Officer William Schumacher improperly used his body-worn camera.

Lieutenant Stefopoulos, PO Coffaro, PO Estevez, and Det. Allicott all activated their BWC at least 30 seconds after they stopped, frisked, and searched the male in the red hoodie (BR05-07 and BR30).

PO Jones activated his BWC after he frisked the moped driver (BR23).

PO Otway activated her BWC after walking past PO Jones and the moped driver and as she approached the male in the red hoodie inside the courtyard.

He did not recall PO Schumacher or any other officer informing him that he was unable to activate his BWC (BR10). The investigation did not ask Lieutenant Stefopoulos why he activated his BWC at the time at which he activated it.

PO Coffaro said that it was not his priority to activate the BWC when he first left his vehicle because he was focused on the stop (BR08). PO Coffaro stated that the civilian's running and adjusting his waistband made it unsafe for him to activate his BWC.

PO Estevez said that he was focused on running after PO Coffaro. PO Estevez wanted to ensure that they were both safe and felt that it was not feasible for him to activate his BWC earlier (BR09). PO Estevez turned on his BWC as soon as he noticed that it was not activated. PO Estevez felt safe once additional officers joined him and PO Coffaro.

Det. Allicott stated that the abruptness of the stop, combined with chasing the individual, made it unfeasible to activate his BWC earlier (BR11). Det. Allicott did not know what the moped passenger had in his hands or bag and so he wanted to keep his hands free. He activated his BWC when he felt that it was safe and feasible.

PO Jones said that he did not activate his BWC because he was looking around trying to figure out his location (BR24). He and his team did not know where they were, and the moped passenger fled. PO Jones also heard a commotion on the radio and so he was trying to make sure he knew where he was, and what was happening with the passenger who fled. While the driver was compliant, PO

Jones was trying to assess the situation and was making sure he and his coworkers were safe. When he realized his camera was not activated, he turned it on.

PO Otway said she did not activate her BWC immediately after exiting the vehicle because she and her team were in pursuit of the moped and the moped passenger who fled (BR28). When she left the vehicle, she approached to assess the situation and make sure everything was good then activated her BWC. PO Otway said that in the need to assess the situation she forgot to activate her BWC.

PO Schumacher did not record footage of this incident on his BWC because its battery depleted (BR27). PO Schumacher stated he notified Lieutenant Stefopoulos. He did not document this in his memo book (BR46).

Patrol Guide Procedure 212-123 states that officers must activate their BWCs prior to engaging in any police action. It directs officers to activate BWCs as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent circumstance occurs (BR32). Officers are to record any interactions that escalate to become adversarial or may hold evidentiary value.

As depicted in their BWCs, Lieutenant Stefopoulos, PO Coffaro, PO Estevez, Det. Allicott, PO Jones and PO Otway did not activate their BWCs § 87(2)(g)

It is therefore recommended that **Allegations J-O** be **Substantiated**.

Patrol Guide Procedure 212-123 also states that officers must notify the patrol or unit supervisor when there is a failure to record a mandatory event, and to document notification and reason event was not recorded, if known, in a memo book entry.

PO Schumacher stated to CCRB that he notified Lieutenant Stefopoulos of his inability to record BWC footage of this incident. § 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Lieutenant Nikolaos Stefopoulos has been a member of service for seventeen years and has been a subject in twenty-eight CCRB complaints and ninety-nine allegations, of which ten were substantiated:
 - **201409178** involved substantiated allegations of physical force, threat of force and a discourteous word, for which the Board recommended charges and NYPD imposed no discipline because Lieutenant Stefopoulos was found not guilty.
 - **201411079** involved substantiated allegations of a frisk and a search of a person. The Board recommended formalized training, and the NYPD imposed formalized training.
 - **201608641** involved a substantiated allegation of a stop and two allegations of other misconduct noted, for failure to document a strip search and failure to produce a stop and

frisk report. The Board recommended command discipline A and the NYPD imposed command discipline A.

- § 87(2)(g) [REDACTED]
- PO Racine Otway has been a member of service for three years and has been the subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Brian Estevez has been a member of service for six years and has been the subject in eleven CCRB complaints and forty-two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Det. Ryan Coffaro has been a member of service for four years and has been the subject in four CCRB complaints and eleven allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Det. Khaleef Allicott has been a member of service for thirteen years and has been a subject in five complaints and fourteen allegations, of which one was substantiated:
 - **202200570** involved a substantiated allegation of a discourteous word for which the Board recommended command discipline A and the NYPD imposed no penalty.
- PO Rashard Jones has been a member of service for eight years and has been a subject in eight CCRB complaint and twenty-six allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO William Schumacher has been a member of service for fourteen years and has been a subject in twenty-one CCRB complaints and sixty-nine allegations, of which fourteen were substantiated:
 - **201204235** involved a substantiated allegation of physical force for which the Board recommended charges and the NYPD imposed forfeiture of ten vacation days, and a substantiated allegation of an entry or search, for which the Board recommended charges, and the NYPD imposed no discipline because PO Schumacher was found not guilty.
 - **201506191** involved a substantiated allegation of a discourteous word. The Board recommended command level instructions and the NYPD imposed no penalty.
 - **201907678** involved substantiated allegations of failure to provide an RTKA card, gender based offensive language. The Board recommended charges and the NYPD imposed formalized training and forfeiture of five vacations days. The complaint also involved a substantiated allegation of interference with recording and false official statement. The Board recommended charges and the NYPD imposed no penalty because PO Schumacher was found not guilty.

○ § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of September 15, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR41).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	Sara Asselman	Inv. Sara Asselman	09/12/2024
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	09/13/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date